

The foundations laid by the EU (which was the first to regulate the sector)

The core of European legislation on artificial intelligence lies in the convergence between innovation and freedom, particularly expressed by the taxonomy of risk levels of various uses of AI, up to those prohibited because they could potentially violate human dignity, cognitive freedom, or amplify discrimination from which, instead, machines were supposed to liberate us.

Intervention by Pasquale Stanzone, President of the Data Protection Authority (Formiche, January 2024)

The AI Act - on which a provisional but decisive agreement was reached on December 9 between the negotiators of the European Parliament and the Presidency of the Council - represents a milestone in the regulation of new technologies: the first general discipline in the world for AI. It is significant that the "primacy," both chronological and axiological, in the regulation of this extraordinary technology (with valuable but also risky potentials, if not well regulated) belongs to Europe. Each of the provisions of the AI Act is, in fact, underpinned by a clear line of legal policy, which, as never before in the case of digital governance, expresses European values, the very identity of the European Union as a "community of law." The aspiration to make AI "trustworthy," reliable, and its regulation "future-proof" tells us a lot about the European idea of innovation and, at the same time, the protection of the individual (to be guaranteed even against distorting uses of technology) which, according to the Charter of Nice, is placed at the center of the Union's action.

First and foremost, the choice in favor of regulation is crucial in a context where the frequent tendency towards deregulation ends up delegating to the law of the market the definition of the perimeter of rights and freedoms. On the other hand, central normative options include a risk-based approach, prohibitions aimed at protecting potentially affected fundamental rights or countering discriminatory uses of algorithms, the reserve of human decision-making, and the need for transparency, of which the obligation to explicitly state the derivation from AI of the contents is a significant expression.

The core of European legislation lies in the convergence between innovation and freedom, particularly expressed by the taxonomy of risk levels of various uses of artificial intelligence, up to those prohibited because they could potentially violate human dignity, cognitive freedom, or amplify discrimination from which, instead, machines were supposed to liberate us. Hence, for example, the prohibition on the use of emotion recognition in the workplace and educational institutions, on cognitive behavioral manipulation, or on techniques that exploit subjective vulnerabilities, or even on social scoring. The classification of individuals based on social behavior, socio-economic status, and subjective characteristics, already problematic in itself, becomes even more so - as demonstrated by the Dutch anti-fraud system Syri - if entrusted to an algorithm, with biases that may characterize it (due to lack of inclusivity and under-representation of the dataset on which it was trained), distorting its outcome.

Significant are also the limits imposed on the conjunction between investigative power and the power of technology, which imposes conditions that are increasingly stringent as the degree of decision-making autonomy of the machine increases. Thus, certain predictive policing systems are prohibited, and exceptions to the ban on facial recognition in public places are restricted.

The use of artificial intelligence in the investigative sector requires, in fact, precautions that prevent the risk of delegating to the algorithm activities that could potentially impact personal freedom and lead to mass surveillance. What is feared is not so much and not only the "slippery slope," but the tendency towards uncritical social acceptance of a progressive limitation of freedom.

On the other hand, the use of AI in the field of research is facilitated and can be further enhanced thanks to the possibility of data sharing for solidarity purposes and, indeed, for the promotion of research allowed by the Data Governance Act, with the innovative institution of data altruism.

The "constitutional" dimension of the AI Act (as an aspiration to protect rights and fundamental freedoms from the risks potentially arising from an anomic use of technology) will, however, suggest, in a descending phase, to enhance the guarantees of independence of the competent national authority regarding AI, also assigning this role to the Data Protection Authorities, as suggested by the European Data Protection Board and, before the Chamber, by the Authority.